

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	24CV451665	<i>Mamoun Abu-Samaha v. International Technological University, et al.</i>	Hearing: Order of Examination This Examination is OFF CALENDAR at the request of the moving party. SO ORDERED.
9:01 2	26CV485448	<i>Craig Rotbert v. Apele Builder, Inc., et al.</i>	Order on Motion by Defense counsel John W. Bussman of Absolute Law Group to be Relieved as Counsel for Defendant Apele Builder, Inc. Defense counsel John W. Bussman of Absolute Law Group moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendant Apele Builder, Inc. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by Defendant and filed with this Motion. Moreover, as a corporation is <i>required</i> under California law to be represented by counsel in civil actions, Apele Builder is ORDERED to retain new counsel to represent it in this case within 30 days of today. And as his last task in this case, attorney Bussman must convey this ORDER to Apele Builder, Inc. today. SO ORDERED.
9:01 3			
9:01 4			
9:01 5			

9:00 <u>1</u>	25CV469523	<i>Sara Taghizadeh</i> <i>v.</i> <i>Nezhat Solimani, M.D., et al.</i>	Order on Defendant Solimani's Demurrer to Plaintiff's First Amended Complaint and Motion to Strike Portions of Plaintiff's First Amended Complaint See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file one formal Order on Defendant Solimani's Demurrer and Motion to Strike.
9:00 <u>2</u>	25CV469523	<i>Sara Taghizadeh</i> <i>v.</i> <i>Nezhat Solimani, M.D., et al.</i>	Order on Defendant Solimani's Motion to Strike Portions of Plaintiff's First Amended Complaint See Line <u>1</u> below for complete tentative ruling on Defendant Solimani's Motion to Strike. After the hearing, the Court will prepare and file one formal Order on Defendant Solimani's Demurrer and Motion to Strike.
9:00 <u>3</u>	25CV481555	<i>Nicholas DiSalvo</i> <i>v.</i> <i>Nancy Bucknell</i>	Order on Defendant Bucknell's Demurrer to Plaintiff's Complaint See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 4	24CV447115	<i>American Express National Bank v. Timmy Tri, et al.</i>	Order on Plaintiff's Motion for Summary Judgment, or in the alternative for Summary Adjudication, in favor of Plaintiff and against Defendant <i>See</i> Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order on this Motion. Moreover, after the hearing, the Court will sign the [Proposed] Judgment that was prepared and filed by Plaintiff with this Motion. SO ORDERED.
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9:00 5	25CV472081	<i>Shaun Allen Laliberte, et al.</i> <i>v.</i> <i>F.S. Trucking Company, et al.</i>	Order on Plaintiff Laliberte’s Motion to deem Plaintiff’s Request for Admissions, Set One, Admitted by Defendant F.S. Trucking Company, Inc., and for Sanctions <i>See</i> Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order on this Motion. Moreover, regardless of whether any party contests this tentative ruling, counsel for all parties in this case are ORDERED TO APPEAR IN PERSON at this August 26, 2026 hearing to discuss with the Court how from this point forward in this case they all <i>will</i> follow the provisions of Santa Clara County Bar Association (“SCCBA”) Code of Professionalism, including but not limited to on Discovery (Section 10) and Motion Practice (Section 11) or else they <i>and</i> their clients will experience an array of sanctions imposed by the Undersigned Judge. <i>See</i> Standing Order of Santa Clara County Superior Court Re SCCBA Code of Professionalism (filed: March 28, 2023) (authorizing Judges to apply this Code of Professionalism to adjudicate discovery disputes). Lest there be the slighted doubt in their minds, their compliance with the SCCBA Code of Professionalism when practicing in this Department 16 is not aspirational but mandatory. SO ORDERED.
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9:00 6	25CV465609	<i>Wells Fargo Bank, N.A.</i> <i>v.</i> <i>Yvonne Trigos</i>	Order on Plaintiff Wells Fargo Bank's Motion to deem Plaintiff's Request for Admissions, Set One, Admitted by Defendant See Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV477349	<i>Lal Rai</i> <i>v.</i> <i>Ford Motor Company, et al.</i>	Order on Defendant Hoblit Motors Ford's Motion to Compel Arbitration and Stay Action See Line 7 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 8	23CV424421	<i>City of Santa Clara</i> <i>v.</i> <i>Bogard Construction, Inc., et al.</i>	Order on Lexington Insurance Company's Motion for Leave to File Complaint-In-Intervention At the request of the moving party, this Motion is OFF CALENDER . SO ORDERED.
9:00 9	24CV453662	<i>Santos Medina</i> <i>v.</i> <i>SF Green Construction Inc., et al.</i>	Order on Plaintiff Medina's Motion to Vacate the June 4, 2025 Order Compelling Arbitration of claims against Defendant Solar Mosaic LLC. See Line 9 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 10			

9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Sara Taghizadeh v. Nezhat Solimani, M.D., et al.*

Case No.: 25CV469523

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Nezhat Solimani, M.D. (“Defendant”) demurs under Code of Civil Procedure Sections 430.10 and 430.30 to Plaintiff’s First Amended Complaint (“FAC”) on the grounds that the pleading does not state facts sufficient to constitute a cause of action for Fraud (Intentional Misrepresentation). Notice of Demurrer (the “Demurrer”) at 2:4-9 (filed: Jan. 12, 2026).

Defendant also moves under Code of Civil Procedure Sections 431.10(b), 435, 436, and 425.10 and Evidence Code Sections 210, 350, 351, 400-406, 410, 702, 800, 802, 1200 and 1400-1401 to strike the following portions of the FAC:

1. Pg. 3:9-10 (“See Declaration of Sara Taghizadeh, Exhibit A, with attached Exhibits 1-3”)
2. Pg. 3:25-26 (See Declaration of Khatereh Taghizadeh, Exhibit B”
3. Pg. 4:6-7 (“See Declaration of Sara Taghizadeh, Exhibit A; Declaration of Zain Jaffer, Exhibit C”);
4. Pg. 4:12-13 (“See Declaration of Zain Jaffer, Exhibit C, attached Exhibit 1”)
5. Pg. 5:2-3 (“See Declaration of Sara Taghizadeh, Exhibit A, with attached Exhibits 1-3”)
6. Pg. 5:8-9 (“See Declaration of Sara Taghizadeh, Exhibit A, with attached Exhibits 1-3”)
7. Pg. 8:11 (“See Exhibit D”)
8. Exhibit A (The entirety of the “Declaration of Sara Taghizadeh” (Pgs. 1-3 and Exhibits 1-3 attached thereto)
9. Exhibit B (The entirety of the “Declaration of Khatereh Taghizadeh” (Pgs. 1-2);
10. Exhibit C (The entirety of the “Declaration of Zain Jaffer” (Pgs. 1-2 and Exhibit 1 attached thereto)
11. Exhibit D (The entirety of Exhibit D)

Notice of Motion to Strike (the “Motion to Strike”) at 2:4-24 (filed: Jan. 12, 2026).

The Demurrer and Motion to Strike came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

Plaintiff received prenatal care from Dr. Solimani from December 2023 through February 2025. On September 26, 2024, Plaintiff experienced vaginal bleeding and sharp abdominal cramps and sought emergency room treatment. Plaintiff forwarded the emergency room records to Dr. Solimani and described her symptoms; the following day Dr. Solimani advised her via MyChart message to avoid physical activity and sex until bleeding stopped and to stay hydrated. (FAC ¶¶ 6-9)

Despite multiple follow-up messages from Plaintiff, Dr. Solimani did not respond further and did not arrange follow-up care until the next scheduled appointment on October 23, 2024. At that visit, Dr. Solimani allegedly failed to acknowledge or document the prior threatened miscarriage. (FAC ¶¶ 10-11)

On January 16, 2025, Plaintiff, accompanied by her sister, reported lack of visible fetal movement to Dr. Solimani, who attributed the concern to an anterior placenta but did not order a non-stress test, biophysical profile, or ultrasound. (FAC ¶ 12)

On February 14, 2025, Plaintiff and her husband again reported markedly decreased fetal movement, stating the baby “was not moving much,” but Dr. Solimani again did not order or recommend emergency diagnostic testing. (FAC ¶ 13)

During her prenatal care, Plaintiff reviewed periodic summaries of her prenatal chart and was verbally informed by Dr. Solimani that all was normal and that fundal growth was consistent with gestational age. Plaintiff believed the accuracy of her medical chart entries and Dr. Solimani’s verbal reassurances and therefore did not question the entries or seek further diagnostic evaluation. (FAC ¶¶ 15-16)

On February 16, 2025, Plaintiff was informed at Sequoia Hospital that her baby had no heartbeat. A post-stillbirth review of Plaintiff’s medical records revealed that certain fundal-height measurements matched gestational weeks despite no actual measurement having been taken, and that records falsely documented that prenatal education had been provided. (FAC ¶¶ 17, 20)

Plaintiff filed this action on June 27, 2025, and amended her complaint on December 2, 2025, alleging causes of action for (1) medical malpractice, and (2) fraud – intentional misrepresentation.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to

object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Id.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Id.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Id.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

III. Analysis of the Demurrer

Dr. Solimani raises two principal issues: (1) the fraud allegations lack the particularity required under California law, and (2) the FAC constitutes a sham pleading because it allegedly contradicts the original complaint’s admission that Plaintiff did not review her medical records until after the stillbirth.

A. The Fraud Allegations Are Pleaded With Specificity

The elements of fraud (intentional misrepresentation) are: (1) misrepresentation; (2) knowledge of falsity (scienter); (3) intent to defraud or induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Cansino v. Bank of America*, (2014) 224 Cal. App. 4th 1462, 1469.) In California, fraud must be pleaded specifically; general and conclusory

allegations do not suffice. The particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Less specificity may be required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (*Cansino, supra*, 224 Cal. App. 4th at 1469) However, this relaxation is narrow and does not eliminate the plaintiff's burden to plead the elements with particularity. (*Thrifty Payless, Inc. v. The Americana at Brand, LLC*, (2013) 218 Cal. App. 4th 1230, 1239.)

Here, the FAC identifies Dr. Solimani as the person who made the alleged misrepresentations and specifies that the misrepresentations consisted of fundal-height measurements recorded as though actual measurements had been performed (including entries matching Plaintiff's gestational weeks) and notations stating that prenatal education was provided when no such instruction occurred. The FAC alleges these misrepresentations were made during Plaintiff's prenatal care, including encounters on January 16, 2025, and February 14, 2025. The FAC further alleges the misrepresentations were made by entries in Plaintiff's medical records, which Plaintiff reviewed during her pregnancy and upon which she relied in believing her pregnancy was progressing normally. (FAC ¶¶ 12-18, 47-51) These allegations sufficiently establish the elements of fraud.

However, Dr. Solimani contends these allegations are insufficient because the FAC (1) alleges the fraud occurred when Plaintiff relied on verbal assurances from her, (2) fails to state facts establishing the content of her verbal assurances, and (3) fails to state facts showing the misrepresentations in Plaintiff's medical records were made with intent to deceive. (Demurrer at 4: 17-24) The Court is not persuaded.

Plaintiff alleges that Dr. Solimani's deliberate falsification of her medical records is the basis of her fraud cause of action and not Dr. Solimani's verbal reassurances. Plaintiff further alleges that the misrepresentations in her medical record were made with the knowledge of their falsity and with the intent to mislead Plaintiff, conceal substandard medical care, and avoid liability for negligent prenatal management. A post-stillbirth review of Plaintiff's medical records confirmed and revealed the extent of Dr. Solimani's fabricated documentation, which included "fundal height measurements that matched gestational weeks without actual measurement, reflecting a deliberate misrepresentation of clinical findings." (FAC ¶¶ 17, 47, 48, 51)

The FAC's fact allegations create a pattern from which the Court can reasonably infer Dr. Solimani's knowledge of the falsity of her medical entries and her intent to induce Plaintiff's reliance on those medical entries. So after carefully reviewing the fact allegations of the FAC, applying the pleading standards of California law including its exception for facts within Dr. Solimani's knowledge, and in the broad exercise of its discretion, the Court finds that the FAC's fact allegations are pleaded with sufficient specificity to defeat this Demurrer.

Accordingly, Dr. Solimani's Demurrer on this ground is **OVERRULED**.

B. The FAC is not a Sham Pleading

Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers. (*Larson v. UHS of Rancho Springs, Inc.*, (2014) 230 Cal. App. 4th 336, 343.) If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations. Allegations in the original pleading that rendered it vulnerable to demurrer cannot simply be omitted without explanation in the amended pleading; the policy against sham pleadings requires the pleader to explain satisfactorily any such omission. (*Id.* at 343-344.)

Dr. Solimani contends the FAC is a sham pleading because it attempts to circumvent the original complaint's admission that Plaintiff did not review her medical records until after the stillbirth. Dr. Solimani emphasizes that Plaintiff's original allegation constitutes a conclusive admission that she had no knowledge of the alleged fabrication until after the stillbirth and thus could not have relied on them during her pregnancy. (Demurrer at 5:7-7:16)

The original Complaint alleged: "[a]fter the stillbirth, a review of Plaintiff's medical records revealed that Defendant Solimani fabricated multiple aspects of Plaintiff's prenatal documentation." (Complaint ¶ 15; Opposition at 11:19-21) The FAC alleges that "during her prenatal care period, Plaintiff reviewed periodic summaries of her prenatal chart and was verbally informed by Dr. Solimani that all is normal and that fundal growth was consistent with gestational age," and that Plaintiff "reasonably believed the chart entries and verbal reassurances to be accurate" and therefore did not question the measurements or seek further evaluation. The FAC further alleges that the post-stillbirth review "revealed the full extent of the misrepresentations that had already influenced Plaintiff's decisions and medical care during pregnancy." (FAC ¶¶ 15-17, 49)

The FAC does not allege the logical opposite of the original complaint's allegations. The original complaint alleged post-stillbirth discovery of fabrication and pre-stillbirth reliance on the records; the FAC alleges the same, adding detail that Plaintiff reviewed periodic summaries of her chart during pregnancy and that the post-stillbirth review revealed the full extent of misrepresentations that had already influenced her decisions. This language is consistent with the theory that Plaintiff accessed chart information during pregnancy (supporting reliance) but did not discover the alleged falsifications until the comprehensive post-stillbirth review. The FAC clarifies how Plaintiff accessed the records (periodic summaries and verbal reassurances), rather than contradicting the timing of discovery.

So after carefully reviewing the fact allegations of the FAC and the record, applying California law on the sham pleading doctrine, and in the broad exercise of its discretion,

the Court finds that the FAC is not a sham pleading.

Accordingly, Dr. Solimani's demurrer on this ground is **OVERRULED**.

IV. Analysis of the Motion to Strike

Dr. Solimani seeks to strike all references to and the entirety of Exhibits A through D attached to the FAC, which consist of verified declarations from Plaintiff, her sister, and her husband, along with supporting documents including medical records and an online provider profile. Dr. Solimani's primary arguments are that these exhibits contain inadmissible hearsay, inadmissible opinion, assume facts not in evidence, lack foundation, lack authentication, lack relevance, and are based on speculation. (Motion at 3:20-5:3)

Code of Civil Procedure section 437 imposes a threshold requirement: "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code. Civ. Proc. § 437(a).) This statutory language is mandatory. It limits the Court's power to matters discernible from the pleading itself or from judicially noticeable facts, not from anticipated evidentiary challenges that will arise at a later stage.

California law permits a party to attach an exhibit to a complaint and incorporate it by reference; once incorporated, the exhibit becomes part of the pleading for all purposes, including demurrer and motion to strike. The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference; facts in the exhibits take precedence over contrary allegations in the body of the complaint. (*Moran v. Prime Healthcare Mgmt., Inc.* (2016) 3 Cal. App. 5th 1131, 1145-1146; *Stella v. Asset Mgmt. Consultants, Inc.* (2017) 8 Cal. App. 5th 181, 193-194)

Here, nothing on the face of the FAC or its attached verified declarations discloses that Plaintiff, her sister, or her husband lack personal knowledge of the matters to which they attest. Each declaration is made under penalty of perjury and purports to be based on the declarant's personal knowledge. Plaintiff's declaration attests to her own prenatal care, the brevity of her appointments, her review of her medical records, and her reliance on Dr. Solimani's reassurances. Her sister's declaration attests to matters she personally observed while accompanying Plaintiff to the January 16, 2025, appointment. Plaintiff's husband's declaration attests to matters he personally observed at the February 14, 2025, appointment and to his receipt of Dr. Solimani's online response.

Whether these declarants will ultimately be able to lay a proper foundation for the admissibility of their testimony at trial, including whether certain statements constitute inadmissible hearsay, or whether medical record excerpts will require custodian authentication at trial are questions that cannot be resolved from the face of the FAC. They depend on factual determinations—what the witness personally perceived, whether an out-of-court statement is offered for its truth, whether a business records exception applies—that are not apparent from reading the verified declarations themselves.

Dr. Solimani cites *Hayman v. Block* (1986) 176 Cal.App.3d 629, and *Keniston v. American National Ins. Co.* (1973) 31 Cal.App.3d 803, for the proposition that declarations must show personal knowledge, competency, and freedom from hearsay. Her reliance on these cases is misplaced since both arose in the summary judgment context, where declarations are submitted as evidence to determine whether a triable issue of fact exists under Code of Civil Procedure section 437c. Neither decision holds that a declaration attached to a complaint must independently satisfy evidentiary requirements applicable to summary judgment evidence, or that alleged evidentiary deficiencies render an otherwise adequately pleaded cause of action subject to a motion to strike.

The distinction matters. At the pleading stage, the court does not weigh evidence or resolve evidentiary objections. It assumes the truth of properly pleaded factual allegations and determines whether those allegations, if proven, would entitle the plaintiff to relief. Dr. Solimani's motion asks the Court to do what section 437 forbids: to look beyond the face of the pleading and prematurely adjudicate evidentiary admissibility questions now that are properly adjudicated at trial or summary judgment.

VI. Conclusion & Order

Dr. Solimani's Demurrer to the FAC's second cause of action for fraud is **OVERRULED**.

Dr. Solimani's Motion to Strike portions of the FAC is **DENIED**.

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Sara Taghizadeh v. Nezhat Solimani, M.D., et al.*

Case No.: 25CV469523

See Line 1 above for complete tentative ruling on Defendant Solimani's Motion to Strike. After the hearing, the Court will prepare and file one formal Order on Defendant Solimani's Demurrer and Motion to Strike.